



The Directorate General for the Protection of Industrial Property

Italian Patent and Trademark Office
Division VII – Patent

Report on patenting procedures – applications
in Italy
Year 2021



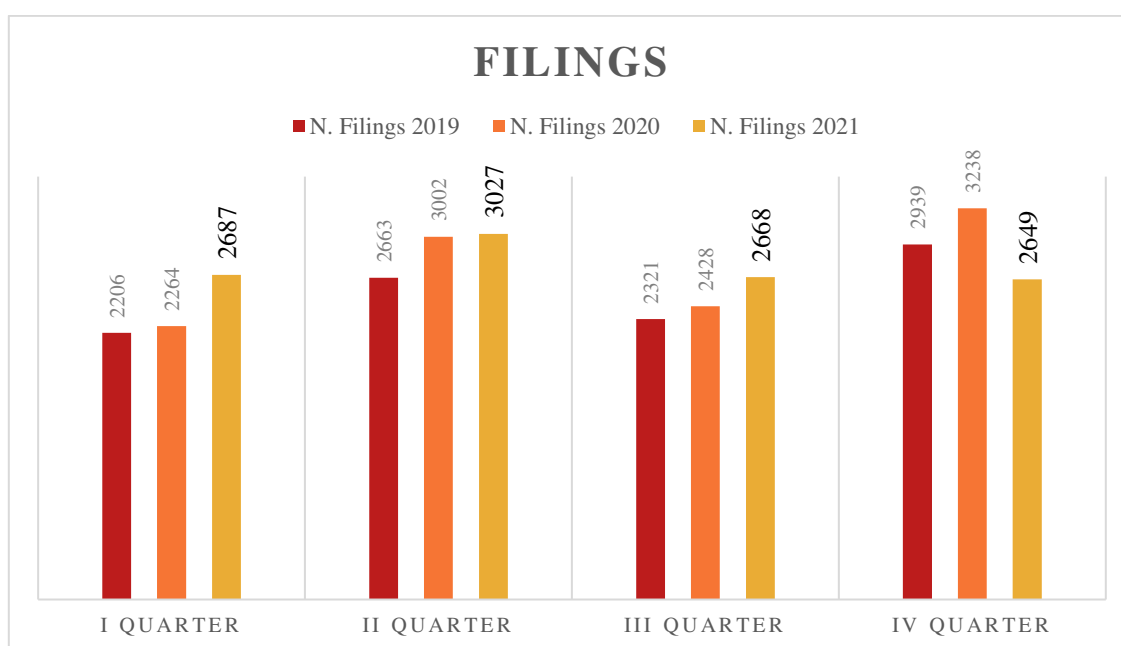
*Ministero
dello Sviluppo Economico*

1 Patents (*industrial inventions*)

1.1 Applications Filing

The following table shows the number of patent filings (*industrial invention*), comparing quarterly data from 2019 to 2021.

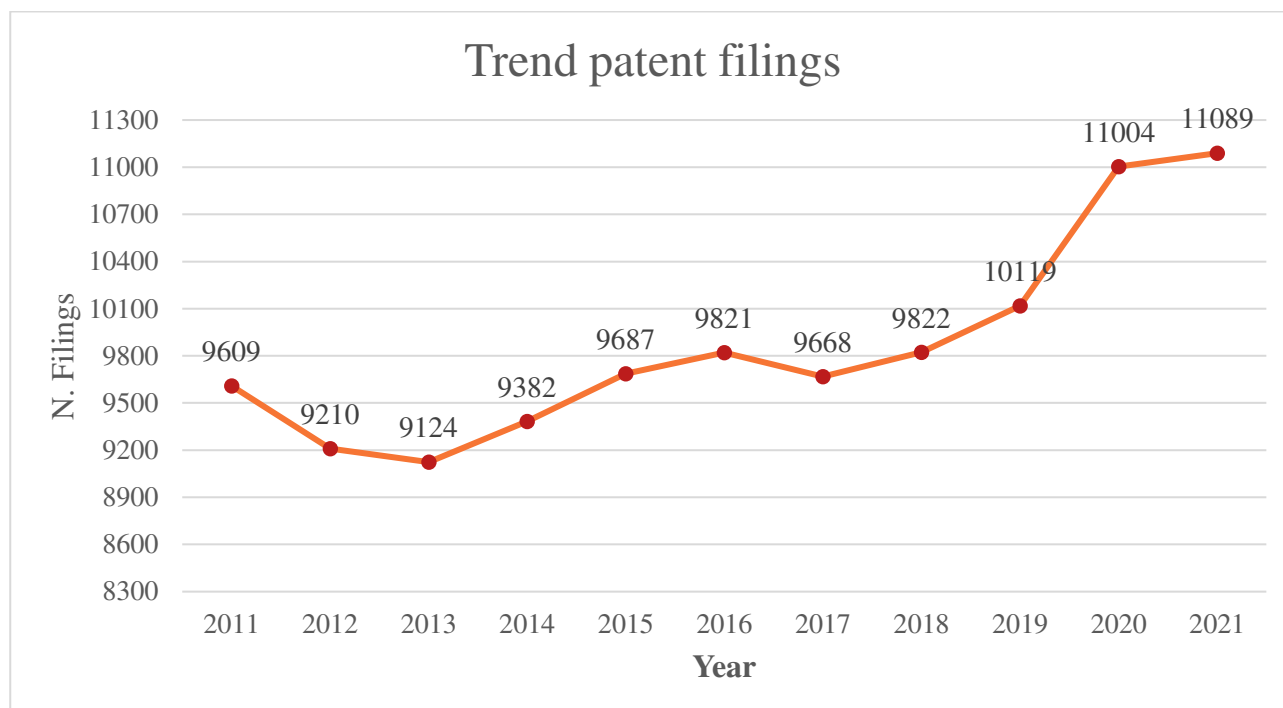
Period	N. Filings 2019	N. Filings 2020	N. Filings 2021
I Quarter	2206	2264	2687
II Quarter	2663	3007	3027
III Quarter	2321	2428	2668
IV Quarter	2939	3283	2649
Total	10129	10977	11031



In 2021, a further increase in patent applications was registered, that confirms the medium-term growth trend.

1.2 Trends in patent filings

The graph below shows the trend of Italian patent filings over the last 11 years (2010-2021)



1.3 Novelty search phase: patent dossiers sent to EPO

Following the preliminary examination and preparation of the dossiers in English, carried out by UIBM, patent applications (*first filings*) are sent to the European Patent Office (EPO) for the prior art search. Applications must be sent to the EPO within the 5th month from the filing date, except for applications that do not meet formal or substantial validity requirements, according to Italian Patent law.

The following table shows the number of patent dossiers sent to the EPO for the prior art search in 2021, compared to 2019-2020 data.

Period	EPO phase 2019	EPO phase 2020	EPO phase 2021
I Quarter	1744	2611	2818
II Quarter	2303	3163	2352
III Quarter	1817	2378	2659
IV Quarter	1754	2268	2274
Total	7618	10420	10103

1.3 Patenting procedures final decisions

The following table shows the numbers of the final decisions- adopted in 2021 – closing each patenting procedure.

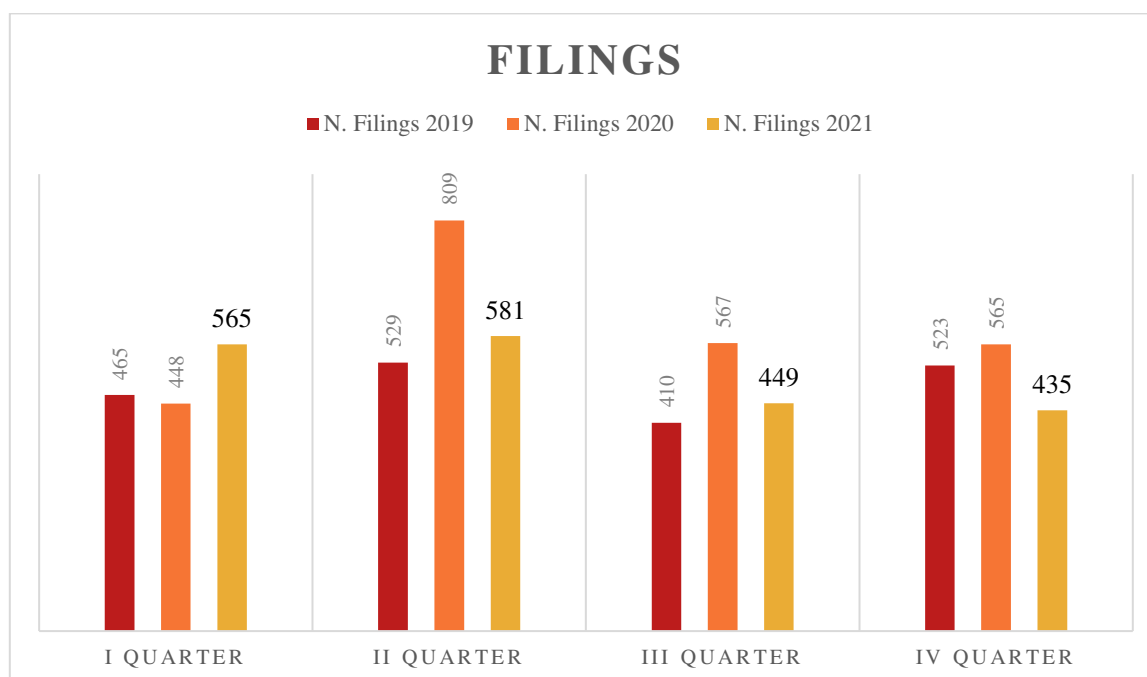
Year 2021					
Final decisions	I Quarter	II Quarter	III Quarter	IV Quarter	Tot.
Grants	2511	1176	1811	1750	7248
Conversion art. 84 CPI	31	53	25	18	127
Not admissible	30	20	22	17	89
Refusals	503	466	480	557	2006
Withdrawals	171	156	118	157	602
Total	3246	1871	2456	2499	<u>10072</u>

2 Utility Models

2.1 Patent applications for Utility Models

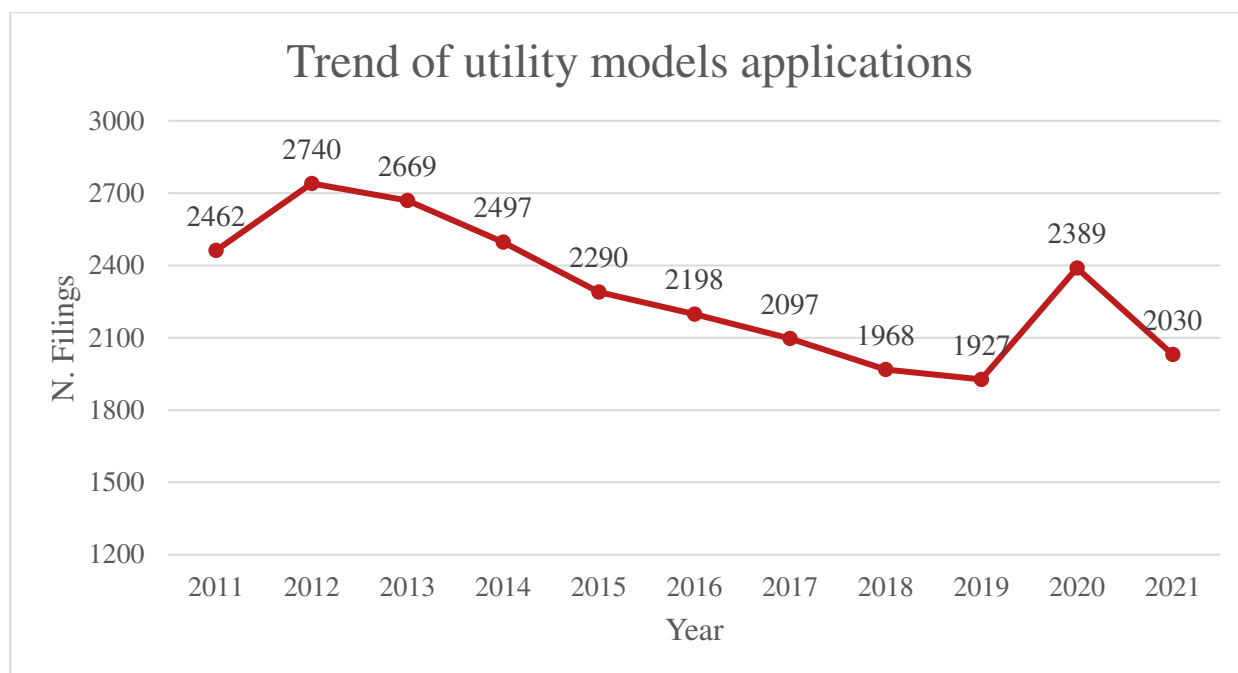
The following table shows the number of patent applications for utility models, that compares quarterly data from 2019 to 2021.

Period	N. Filings 2019	N. Filings 2020	N. Filings 2021
I Quarter	465	448	565
II Quarter	529	809	581
III Quarter	410	567	449
IV Quarter	523	565	435
Total	<u>1927</u>	<u>2389</u>	<u>2030</u>



2.2 Trend in utility models patent applications

The graph shows the trend in utility models applications over the last 11 years (2011-2021)



2.3 Utility models patenting procedures: final decisions

Year 2021					
Final Decisions	I Quarter	II Quarter	III Quarter	IV Quarter	Tot.
Grants	632	341	410	382	1765
Conversions art. 84 CPI	5	2	2	2	11
Not admissible	27	38	13	17	95
Refusals	183	138	151	116	588
Withdrawals	12	12	11	15	50
Total	859	531	587	532	<u>2509</u>

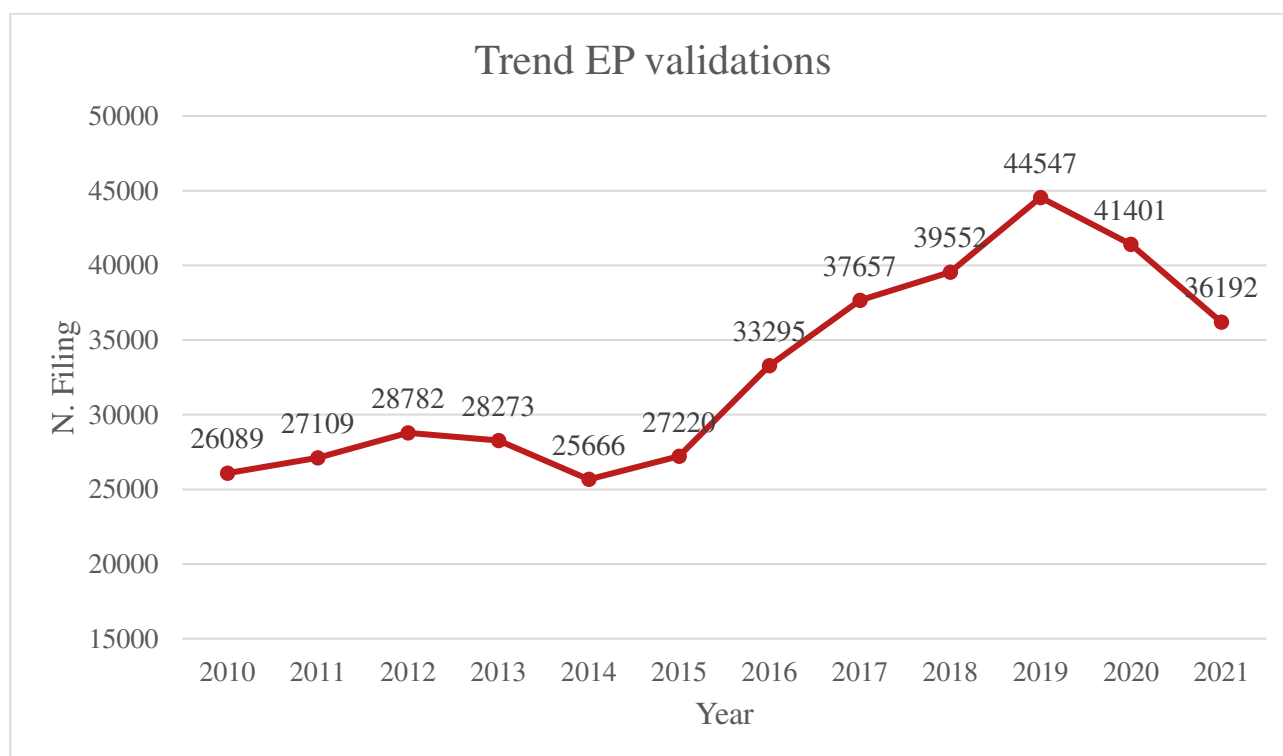
3 European patent national validations in Italy

3.1 Requests for EP validation

Year 2021					
Filings	I quarter 2020	II quarter 2020	III quarter 2020	IV quarter 2020	Total
EP Validation requests	9268	8823	9091	9010	36192

3.2 Trend of EP validations in Italy

The graph shows the trend of the EP validation requests in Italy (period 2010-2021). There is a slight decrease after the peak registered in 2019.



3.3 EP validation procedures: final decisions

Year 2021					
Final decisions	I Quarter	II Quarter	III Quarter	IV Quarter	Tot.
Validations	10191	8228	10064	9162	37645
Refusals	16	21	7	9	53
Withdrawals	1	1			2
Total	10208	8250	10071	9171	<u>37700</u>

4 Supplementary Protection Certificates, New Plant Varieties and Semi-Conductors Topographies

4.1.1 Applications

Year 2021					
Filings	I quarter 2020	II quarter 2020	III quarter 2020	IV quarter 2020	Total
SPCs	13	23	17	20	73
NPV	1	3	2	3	9
SCT	1	0	0	0	1
Total	15	26	19	23	<u>83</u>

4.2 Final decisions SPCs

Year 2021					
Final decisions	I quarter	II quarter	III quarter	IV quarter	Tot.
Grants	15	21	21	24	81
Refusals	3	3	1	2	9
Withdrawals	1	1	0	0	2
Revoked	12	11	0	0	25
Total	31	36	22	26	<u>115</u>

5 Summary

5.1 Total applications with UIBM

Year 2021						
Period	Patents	Utility Models P.	EP National Validations	Receiving Office: PCT + EP	SPCs+ NPV + SCT	Total
I Quarter	2687	565	9268	123	15	12658
II Quarter	3027	581	8823	142	26	12599
III Quarter	2668	449	9091	125	19	12352
IV Quarter	2649	435	9010	185	23	12302
Total	11031	2030	36192	575	83	<u>49911</u>

5.2 Total final decisions

Year 2021					
Final decision	Pat.	UP	CCP CCPF	Valid EP	Total
Validations				37645	37645
Revoked			23		23
Grants	7248	1765	81		9094
Conversions art. 84 CPI	127	11			138
Not admissible	89	95			184
Refusals	2006	588	9	53	2656
Withdrawals	602	50	2	2	656
Total	10072	2509	110	37700	<u>50396</u>

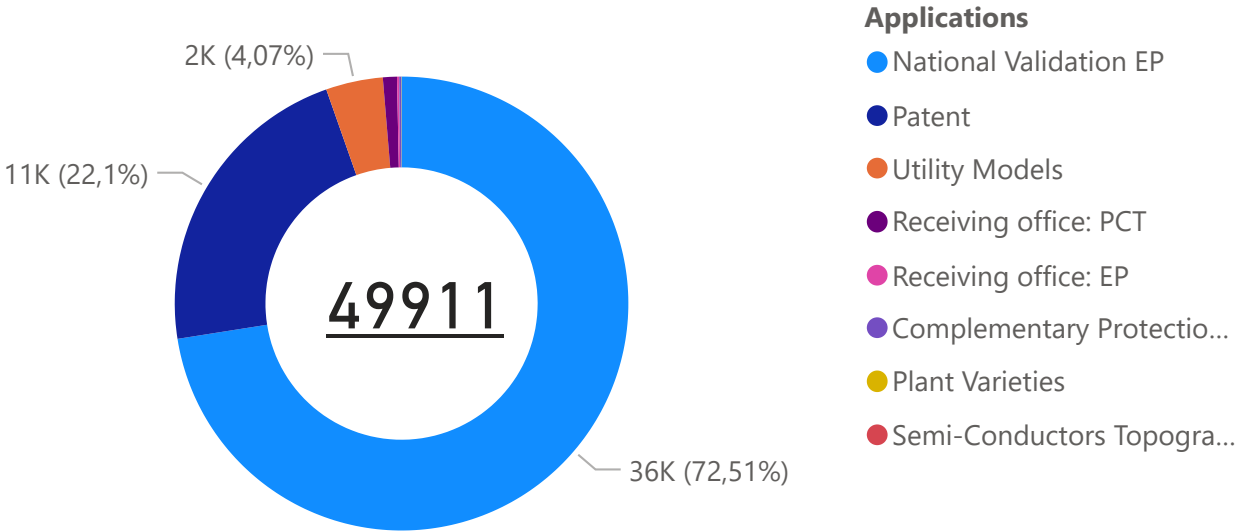
6 Annex

The following pages analyse in more detail all patenting procedures at the UIBM:

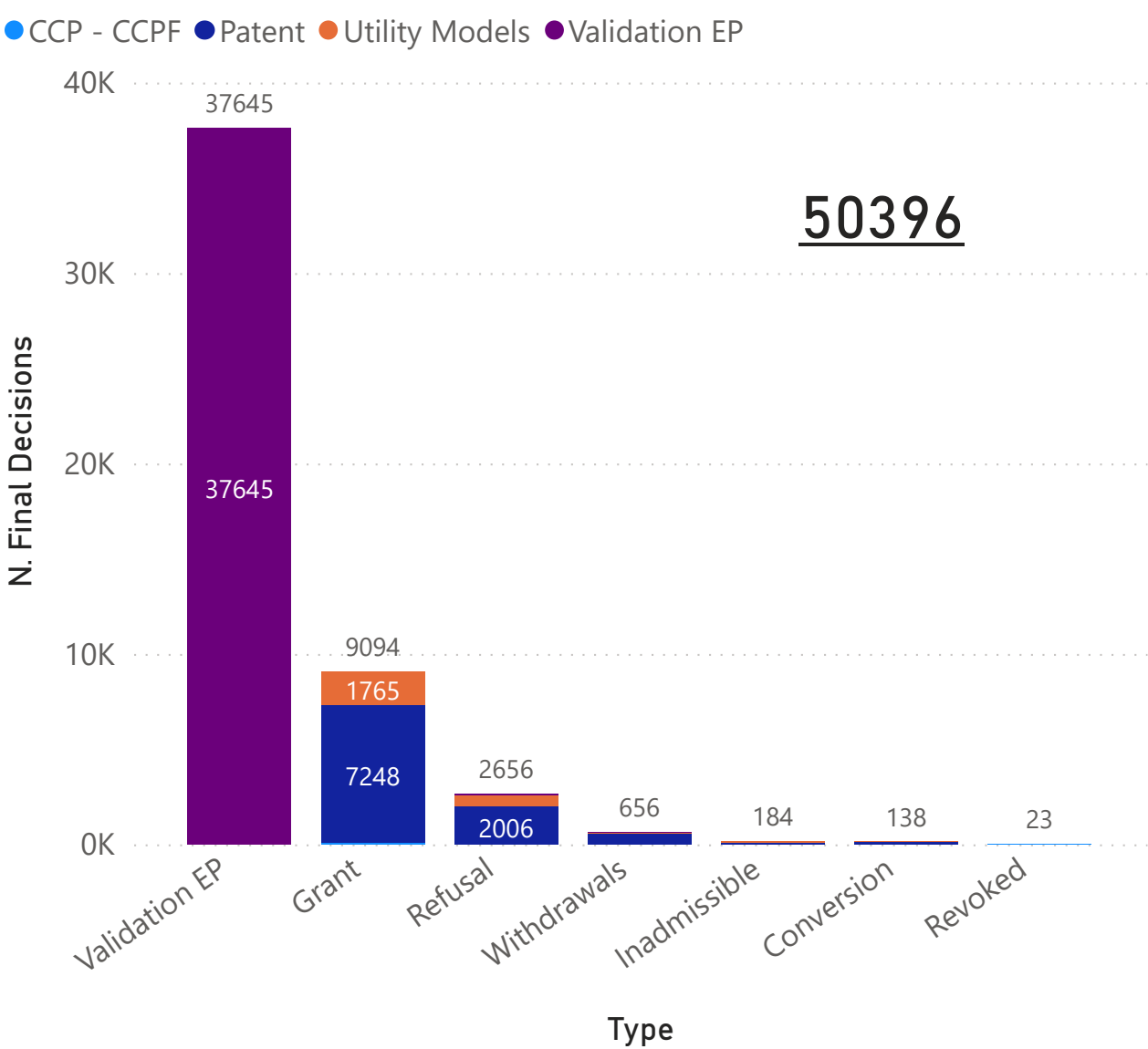
- Filing numbers;
- Timing for prior art search
- Final decisions
- Focus on applicants nationality

Filings and final decisions 2021 of main Italian IP applications

Filings



Final decisions

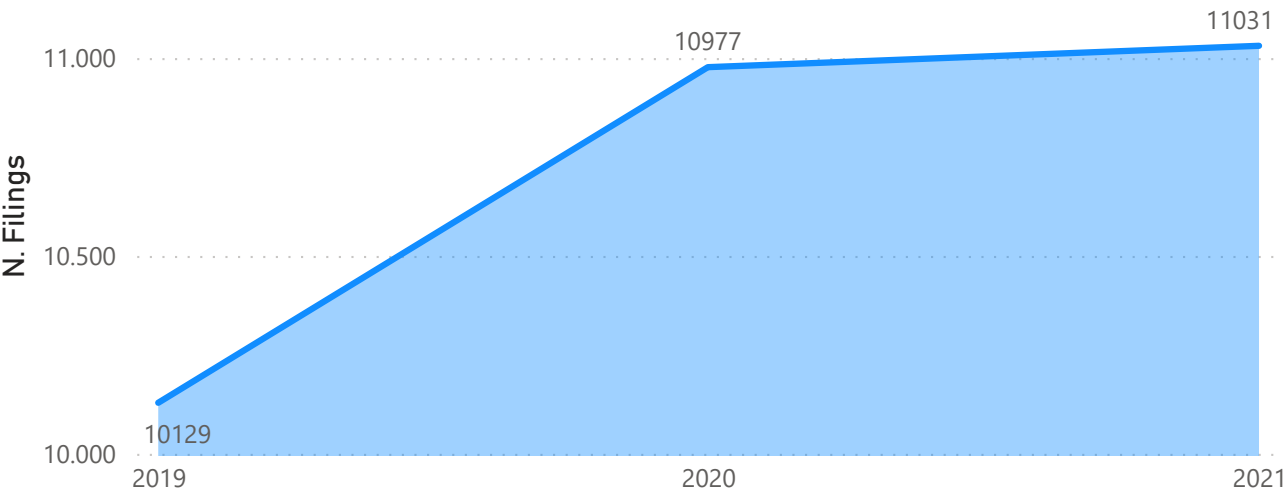


Patent

Patent filings

The tables and the graphs show the number of patent applications .

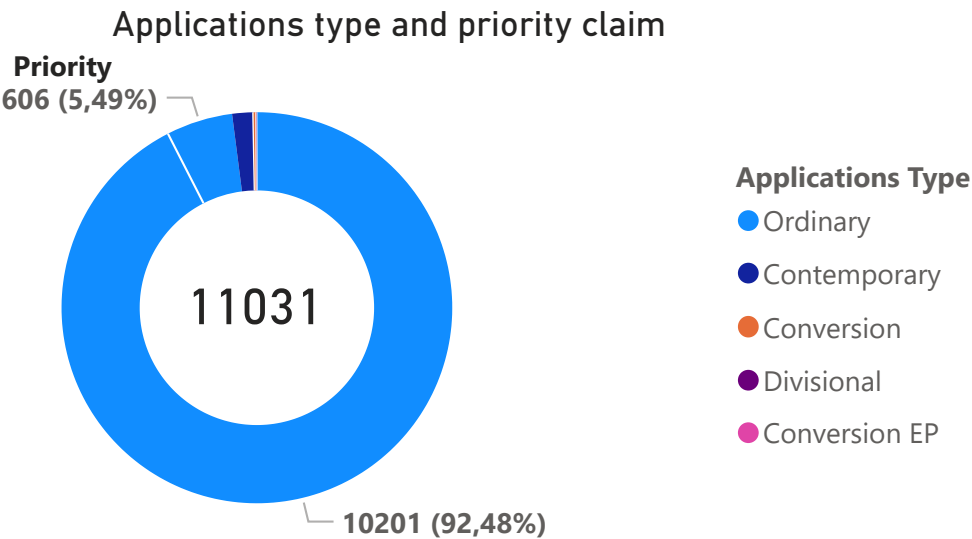
Trend filings



Trimestre	2019	2020	2021	Total
Trim 1	2206	2264	2687	7157
Trim 2	2663	3002	3027	8692
Trim 3	2321	2428	2668	7417
Trim 4	2939	3283	2649	8871
Total	10129	10977	11031	32137

*Trim = Quarter

2021



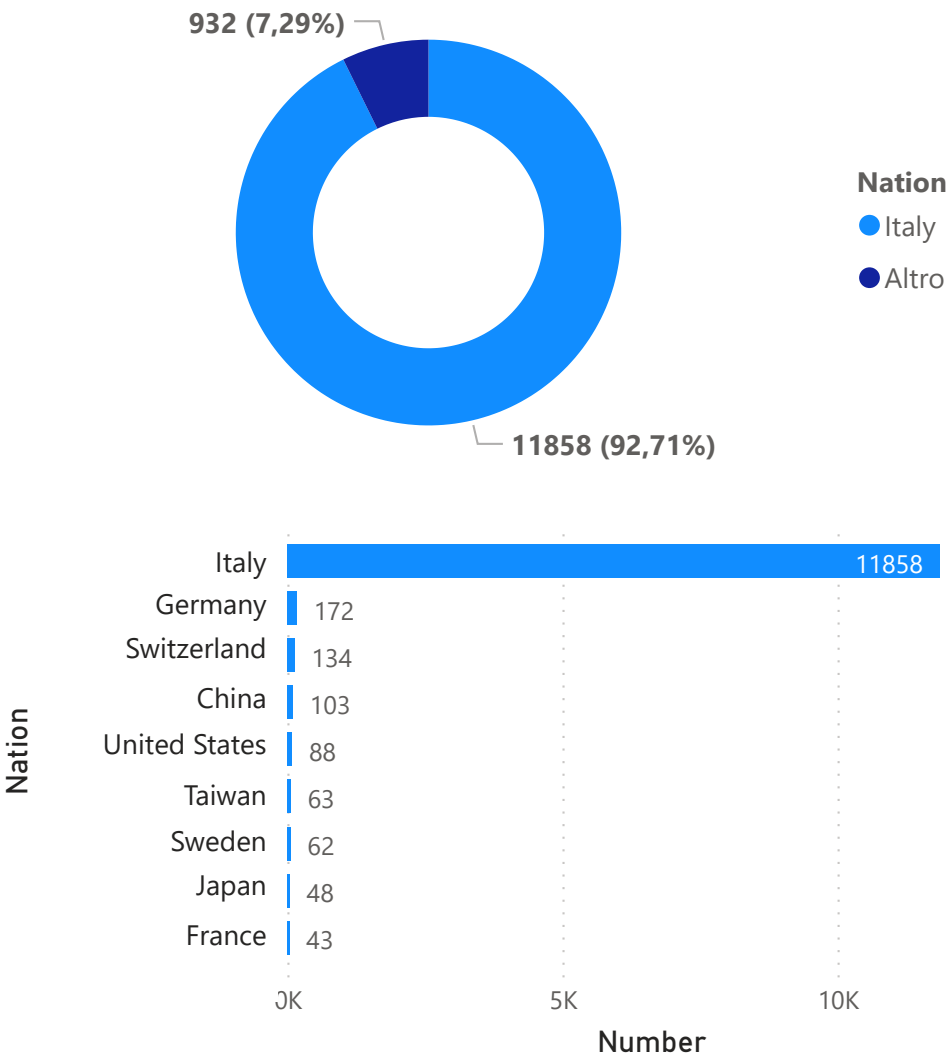
Applications Type	Priority NO	Priority YES	Total
Ordinary	10201	606	10807
Contemporary	191	3	194
Conversion	25	1	26
Divisional	3		3
Conversion EP	1		1
Total	10421	610	11031

Patent

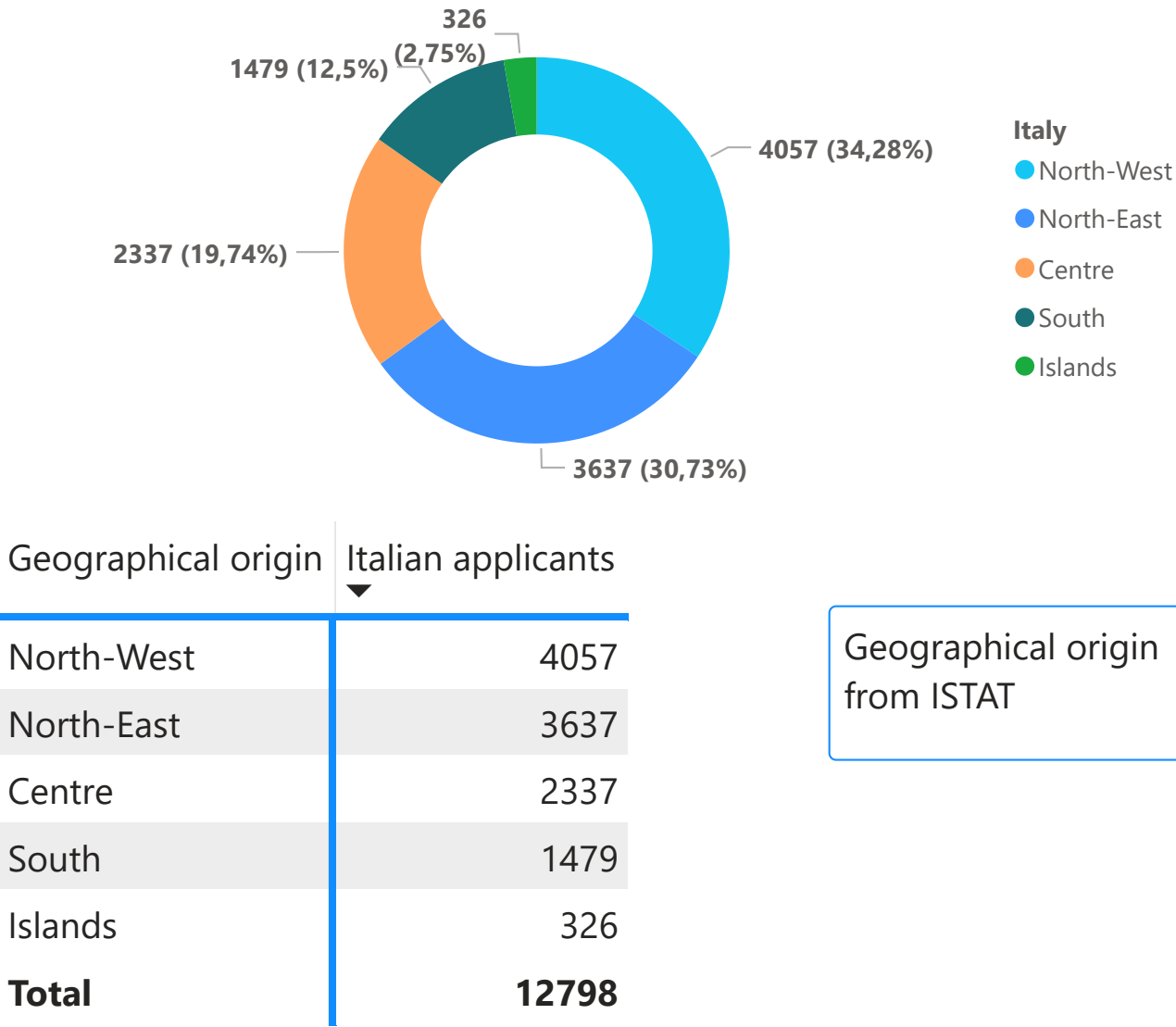
2021Patent applications focus on applicants

In this page is analyzed the applicants Nationality (an application may have more than one applicant)

Applicant Nationality



Geographical origin of Italian applicants



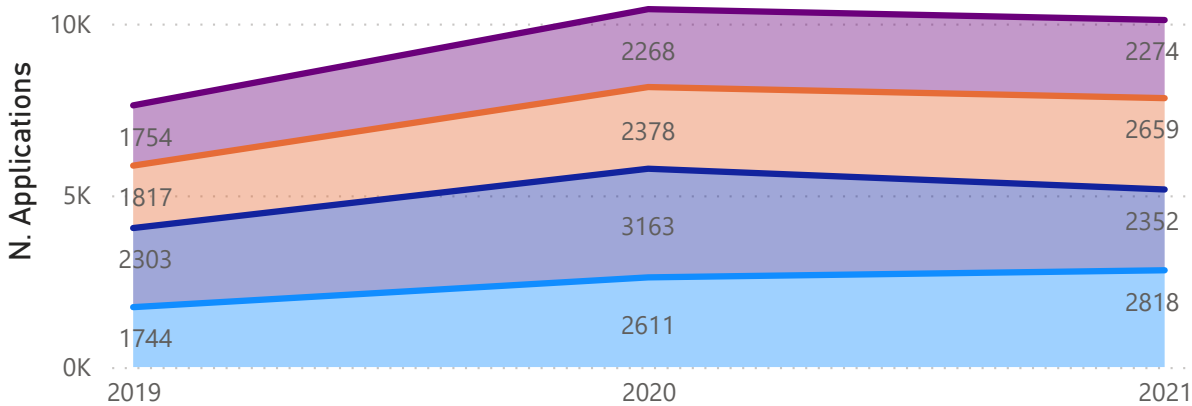
Patent

Dossier sent to EPO for novelty search

The following statistics show the number of dossiers sent to EPO for the novelty search (The date refers to the processing time)

Trend Dossier sent to EPO

Quarter Trim 1 Trim 2 Trim 3 Trim 4

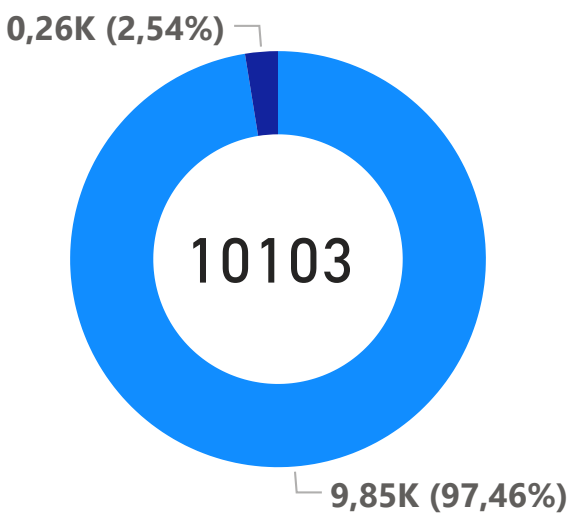


Trimestre	2019	2020	2021	Total
Trim 1	1744	2611	2818	7173
Trim 2	2303	3163	2352	7818
Trim 3	1817	2378	2659	6854
Trim 4	1754	2268	2274	6296
Total	7618	10420	10103	28141

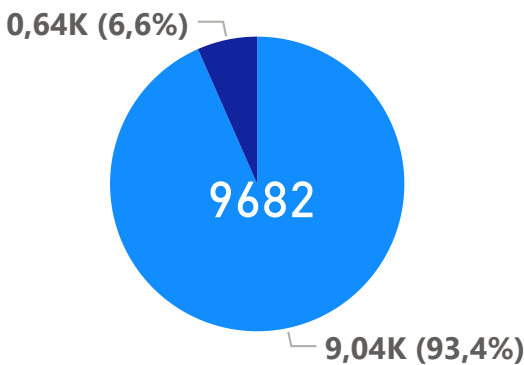
*Trim = Quarter

2021

Average time for sending dossiers to EPO for novelty search



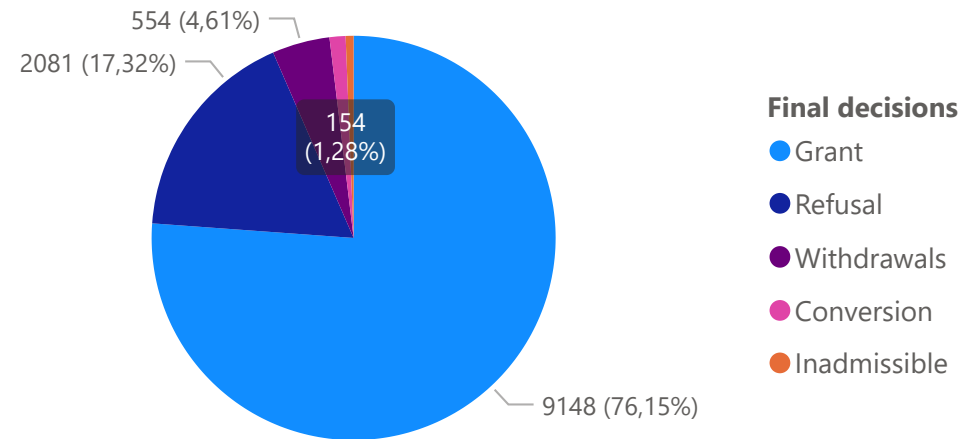
Times receipting Search Report



Patent

Final decisions

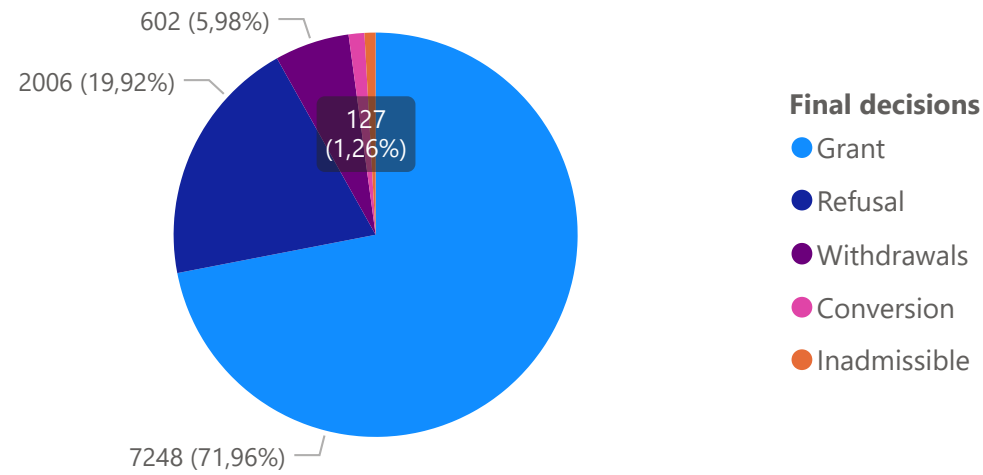
2020



Year 2020

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
Grant	2947	1808	2775	1618	9148
Refusal	667	321	566	527	2081
Withdrawals	135	122	141	156	554
Conversion	35	39	41	39	154
Inadmissible	8	5	29	34	76
Total	3792	2295	3552	2374	12013

2021



Year 2021

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
Grant	2511	1176	1811	1750	7248
Refusal	503	466	480	557	2006
Withdrawals	171	156	118	157	602
Conversion	31	53	25	18	127
Inadmissible	30	20	22	17	89
Total	3246	1871	2456	2499	10072

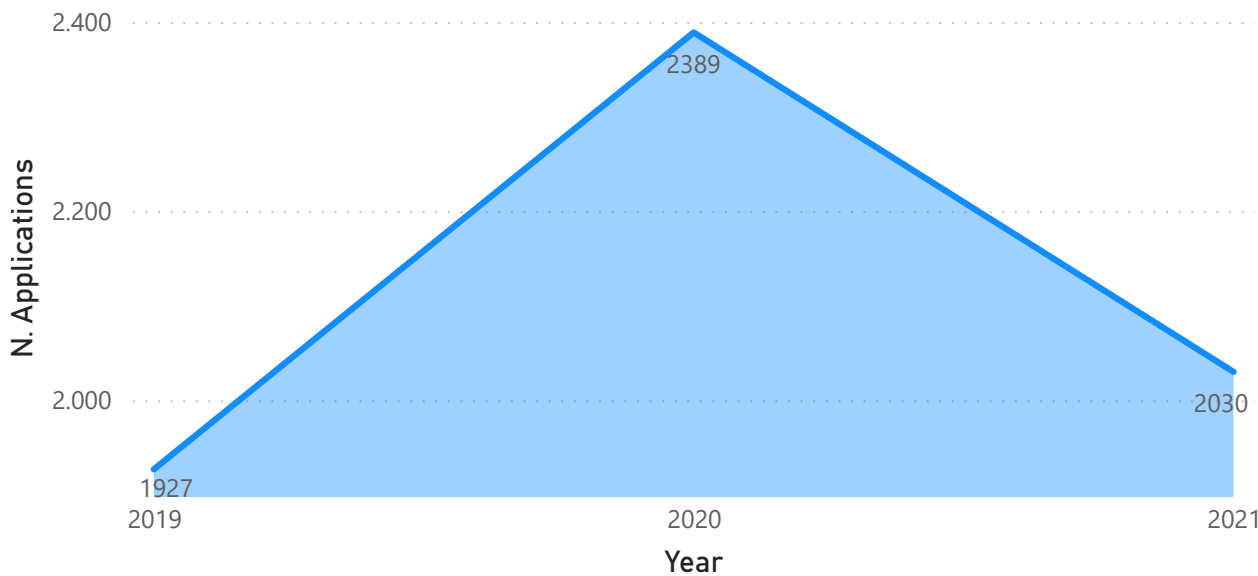
*Trim = Quarter

Utility Models

Filings Utility Models

The table and the graphs show the number of utility models.

Trend filings

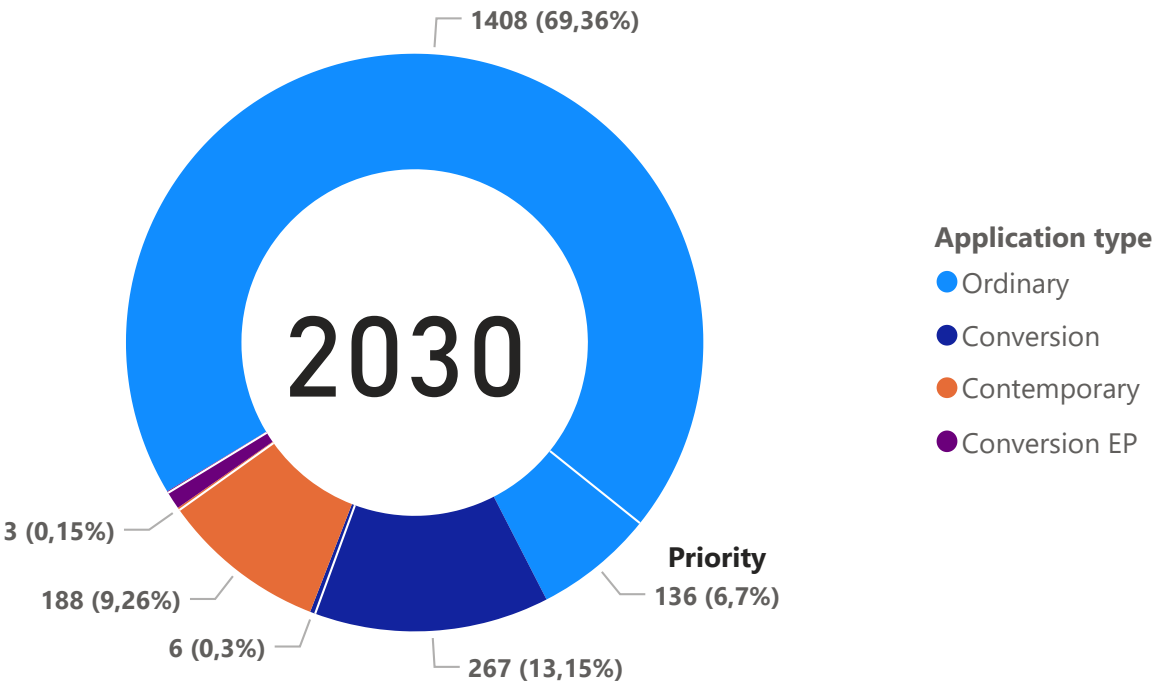


Trimestre	2019	2020	2021	Total
Trim 1	465	448	565	1478
Trim 2	529	809	581	1919
Trim 3	410	567	449	1426
Trim 4	523	565	435	1523
Total	1927	2389	2030	6346

*Trim = Quarter

2021

Applications type and claim priority

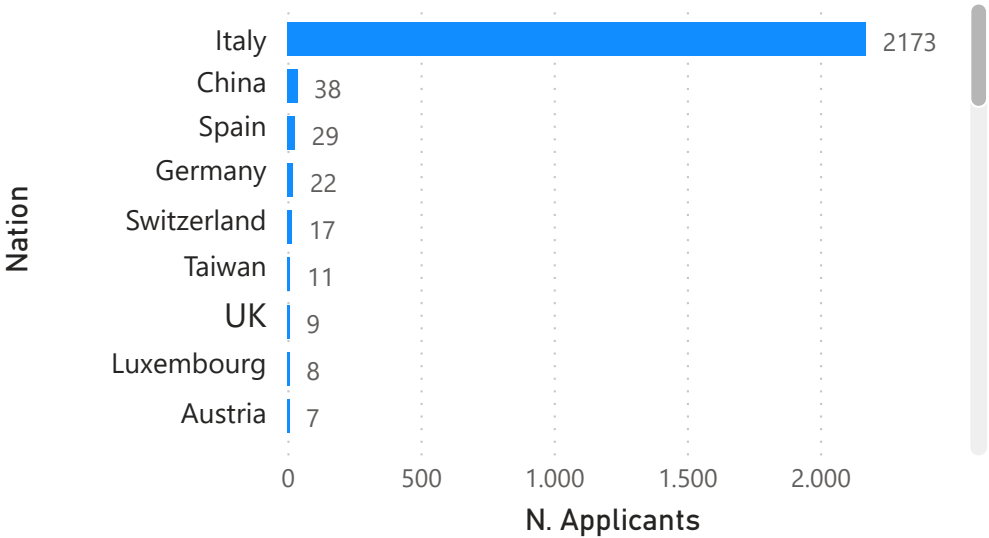
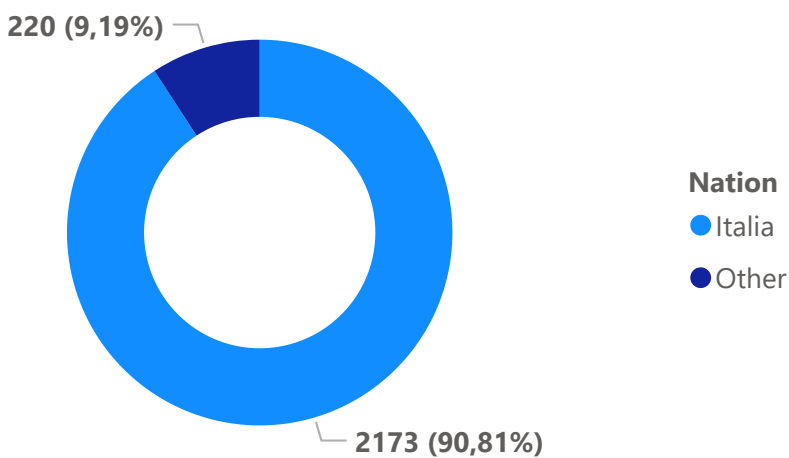


Utility Models

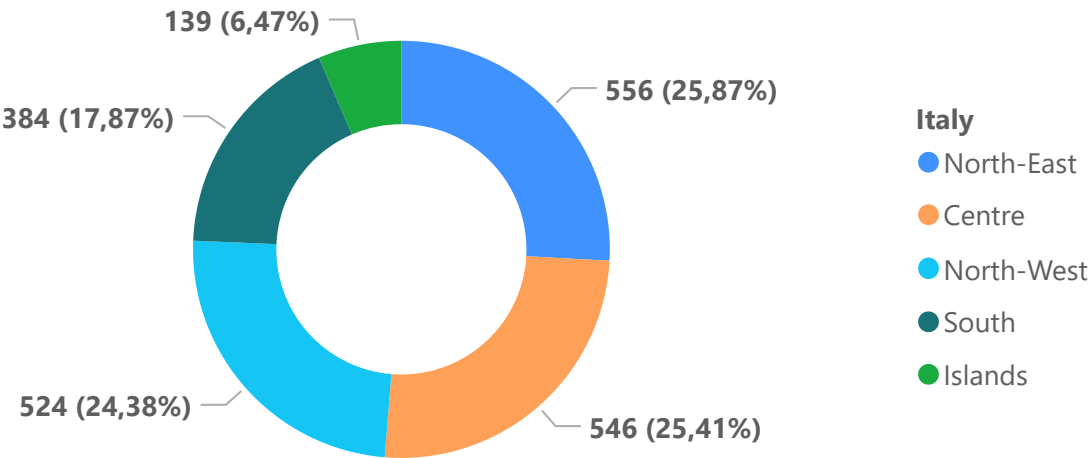
2021 Utility patents focus on applicants

In this page is analyzed the applicants Nationality (an application may have more than one applicant)

Applicants Nationality



Geographical origin of Italian applicants



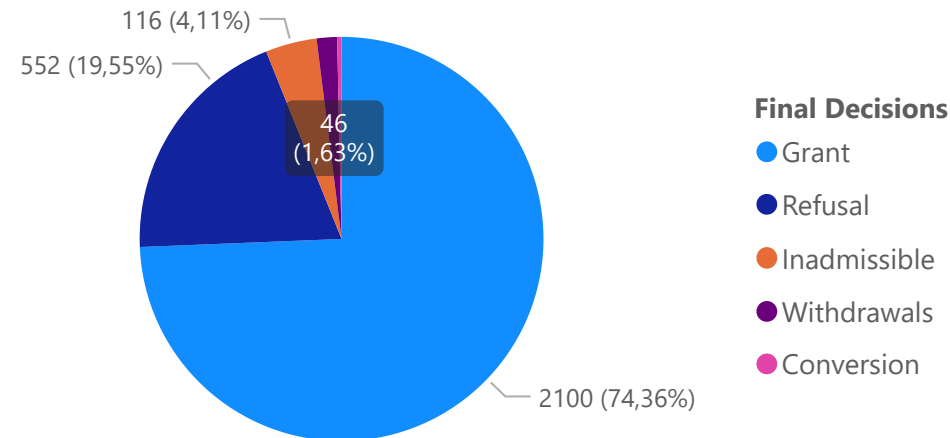
Geographical origin	N. applicants
North-East	556
Centre	546
North-West	524
South	384
Islands	139
Total	2393

Geographical origin from ISTAT

Utility Models

Final Decisions

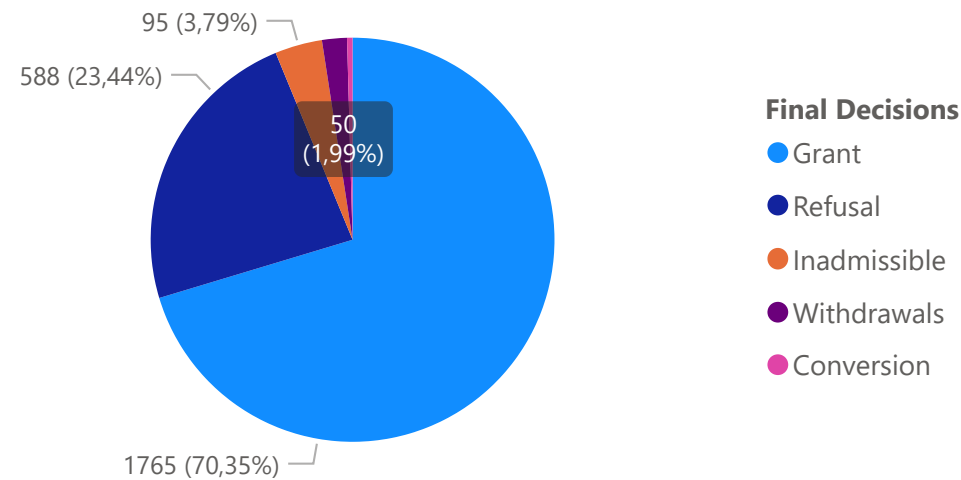
2020



Year 2020

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
Grant	525	532	548	495	2100
Refusal	123	65	130	234	552
Inadmissible	7	2	68	39	116
Withdrawals	9	11	12	14	46
Conversion	1	3	3	3	10
Total	665	613	761	785	2824

2021



Year 2021

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
Grant	632	341	410	382	1765
Refusal	183	138	151	116	588
Inadmissible	27	38	13	17	95
Withdrawals	12	12	11	15	50
Conversion	5	2	2	2	11
Total	859	531	587	532	2509

*Trim = Quarter

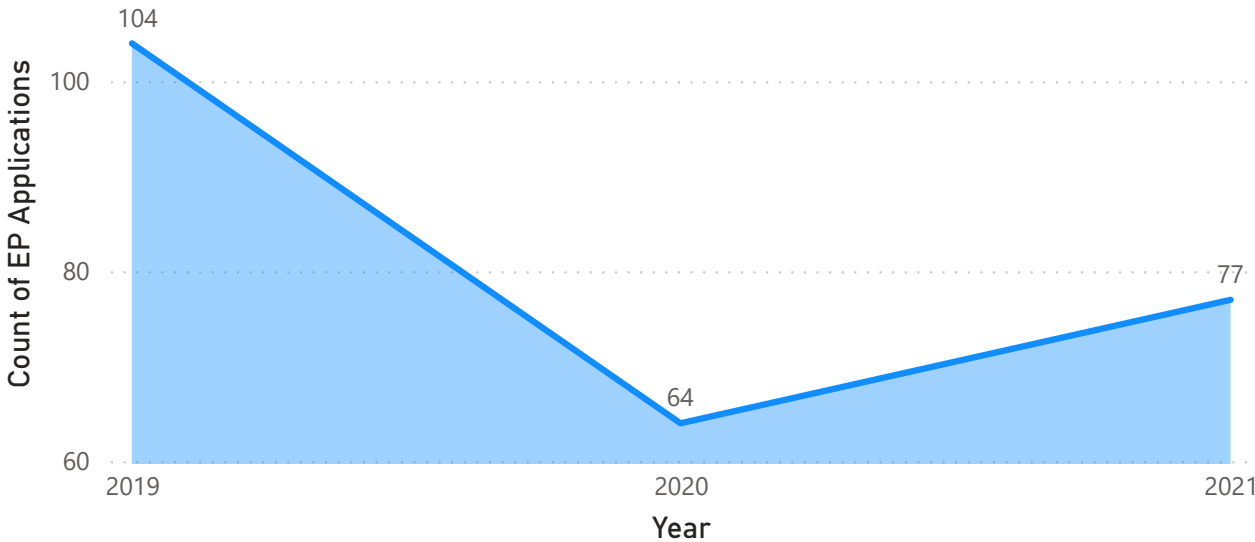
Receiving office: EP applications

The table and the graphs show the number of EP applications .

Trimestre	2019	2020	2021	Total
Trim 1	21	12	16	49
Trim 2	25	9	15	49
Trim 3	24	19	13	56
Trim 4	34	24	33	91
Total	104	64	77	245

*Trim = Quarter

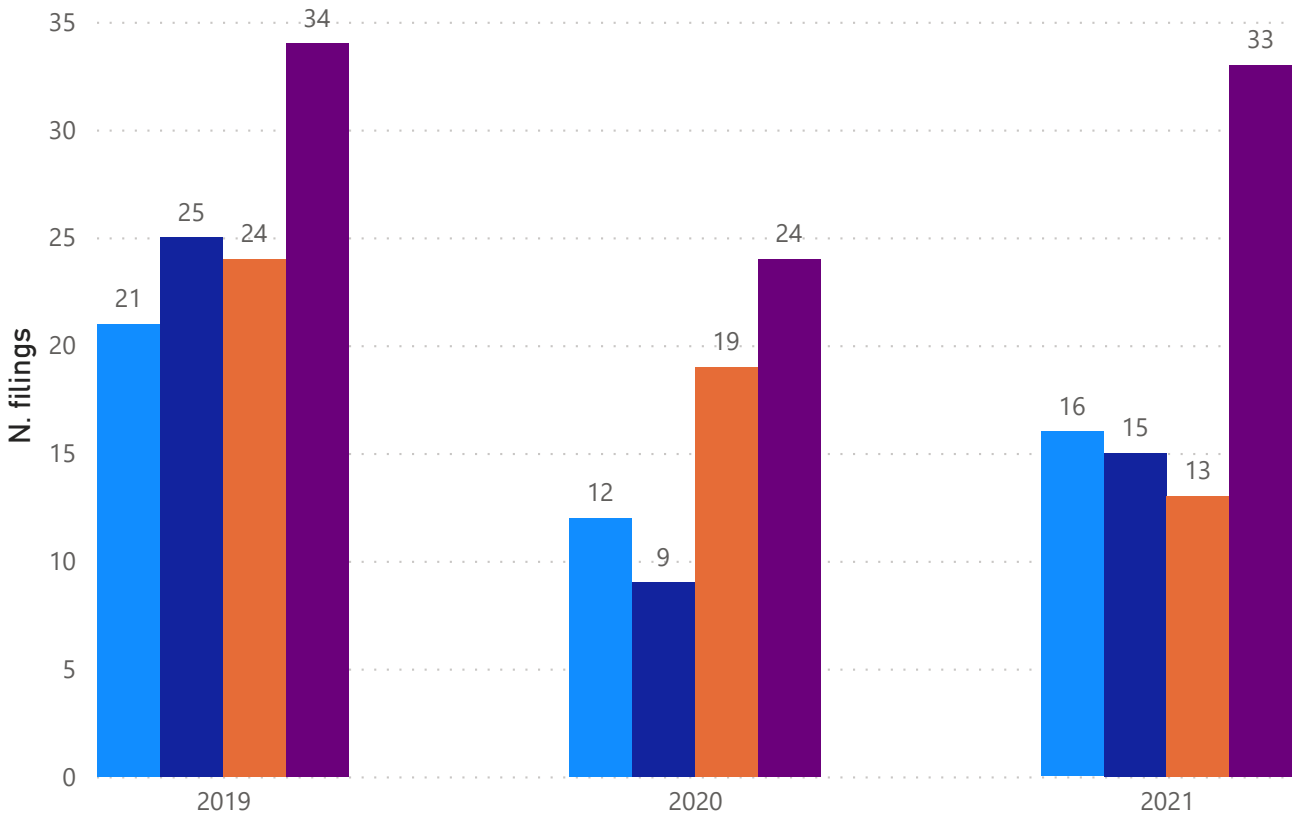
Trend EP applications



Trend EP applications

Quarter Trim 1 Trim 2 Trim 3 Trim 4

Filing date



Receiving office - PCT applications

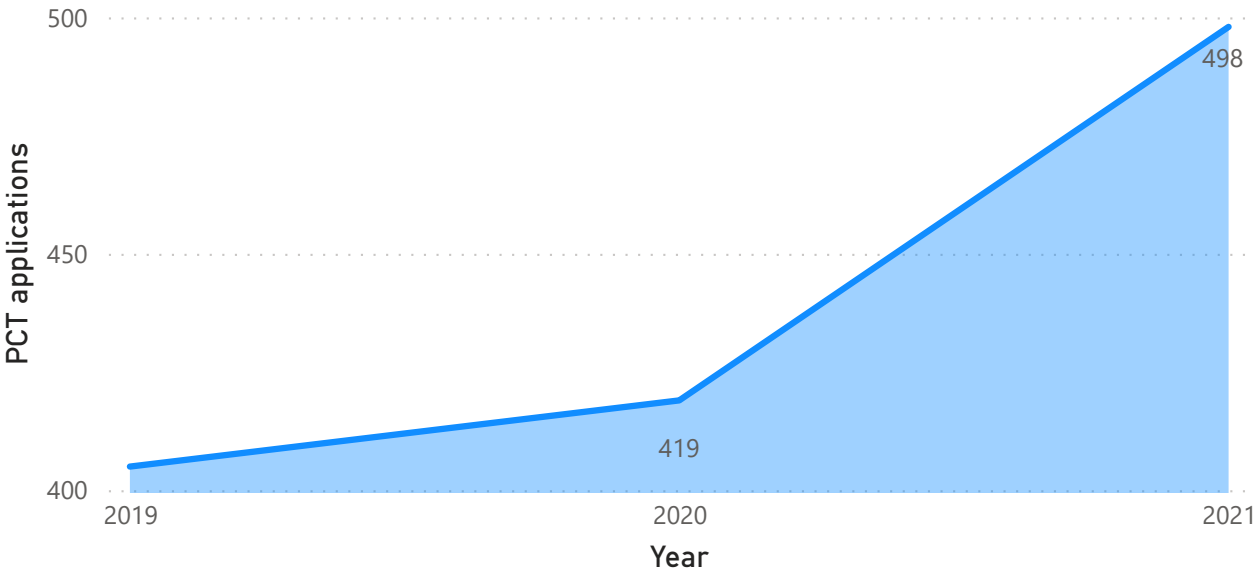
Patent Cooperation Treaty(PCT) Applications

The table and the graphs show the number of filings PCT applications .

Quarter	2019	2020	2021	Total
Trim 1	97	114	107	318
Trim 2	110	106	127	343
Trim 3	85	87	112	284
Trim 4	113	112	152	377
Total	405	419	498	1322

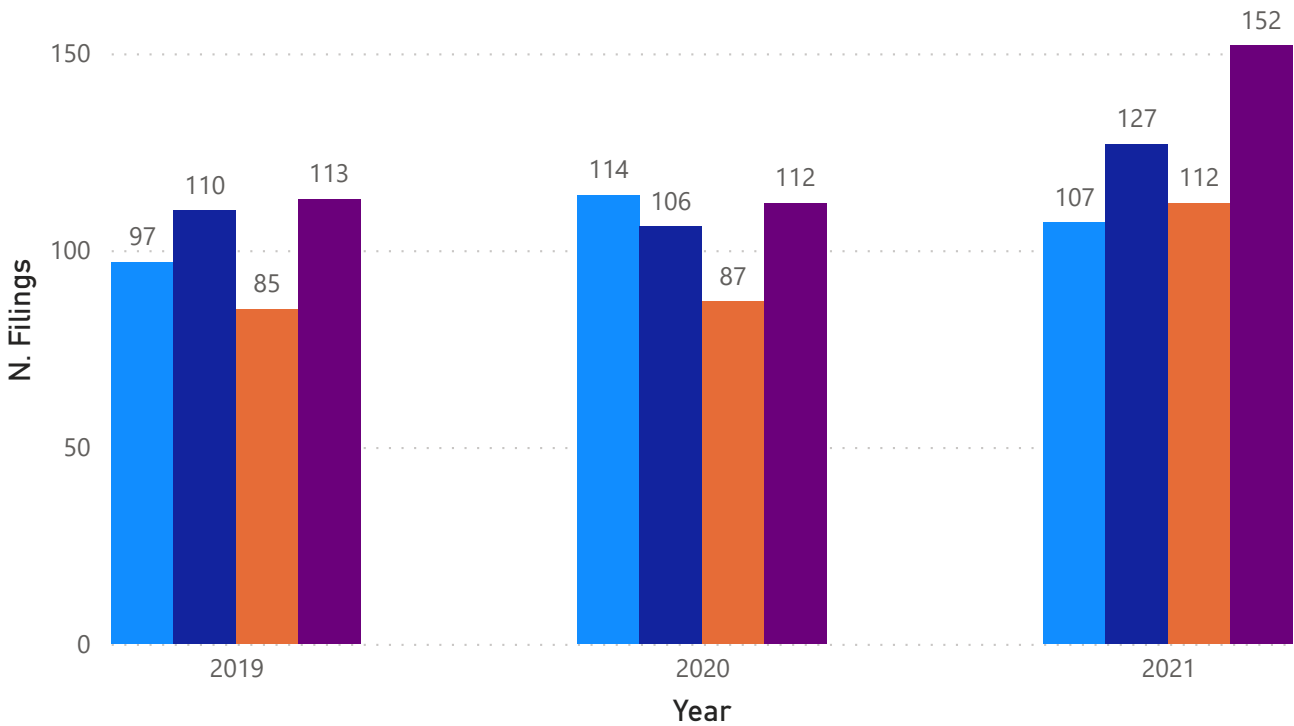
*Trim = Quarter

Trend PCT applications



Trend PCT applications

Quarter Trim 1 Trim 2 Trim 3 Trim 4



National validation of European patents

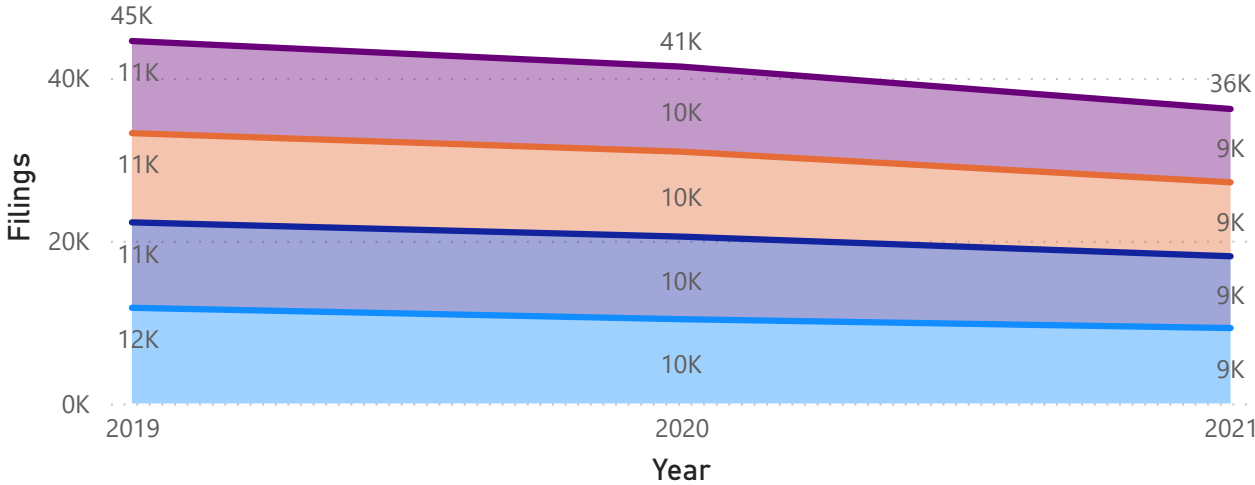
The table and the graphs show the number of national validations of European Patents .

Quarter	2019	2020	2021	Total
Trim 1	11758	10357	9268	31383
Trim 2	10500	10150	8823	29473
Trim 3	10964	10442	9091	30497
Trim 4	11325	10452	9010	30787
Total	44547	41401	36192	122140

*Trim = Quarter

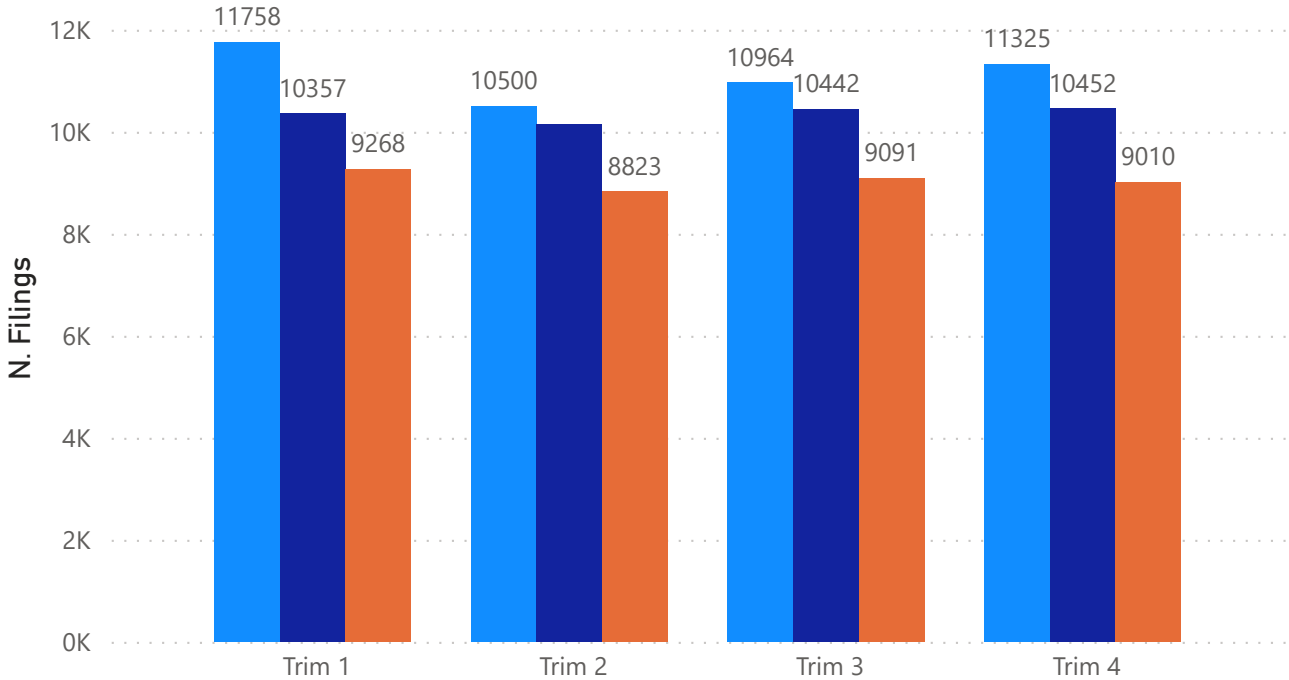
Trend

Quarter Trim 1 Trim 2 Trim 3 Trim 4



Trend

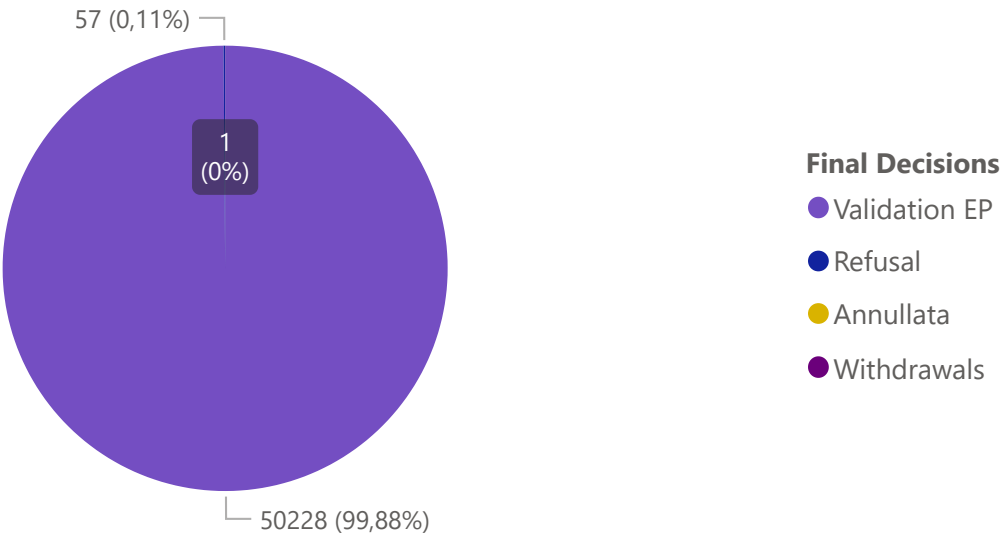
Year 2019 2020 2021



National validation of European patents

Final Decisions

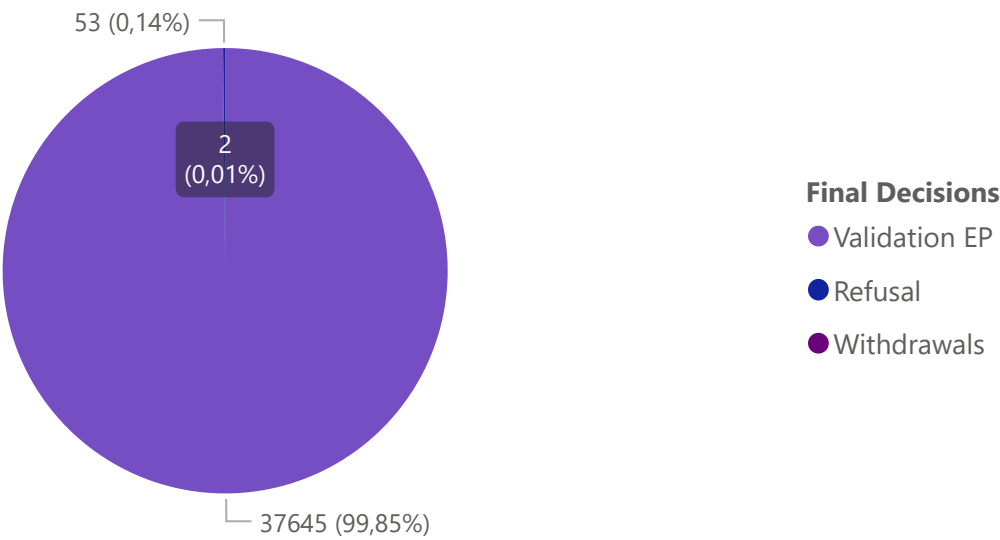
2020



Anno 2020

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
Validation EP	13502	17335	9633	9758	50228
Refusal	10	2		45	57
Withdrawals			1		1
Total	13512	17337	9634	9803	50286

2021



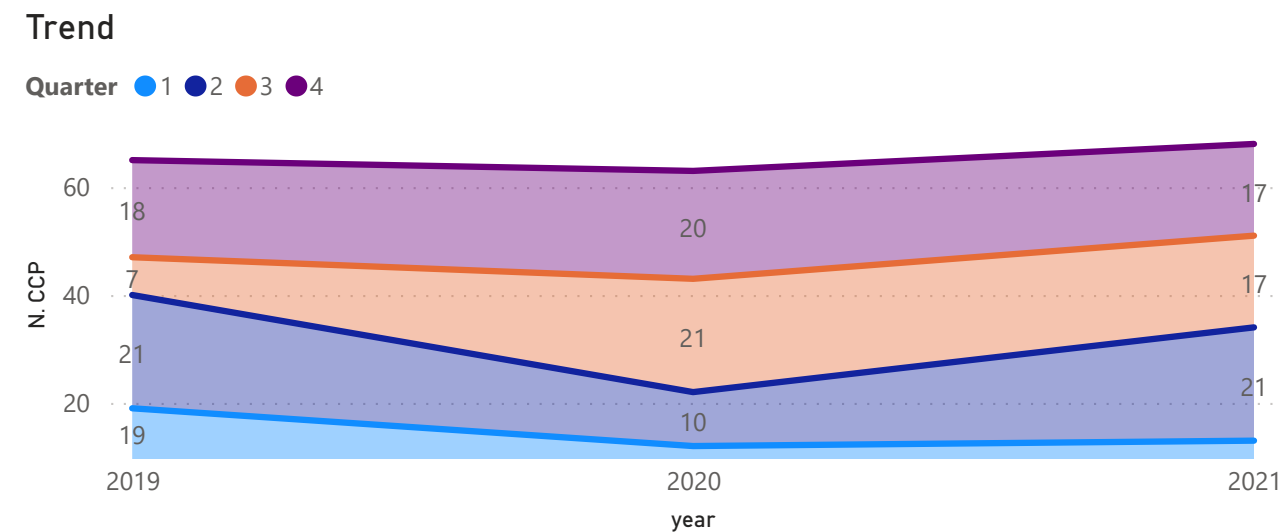
Anno 2021

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
Validation EP	10191	8228	10064	9162	37645
Refusal	16	21	7	9	53
Withdrawals	1	1			2
Total	10208	8250	10071	9171	37700

Supplementary Protection Certificates for medicines (CCP)

Applications

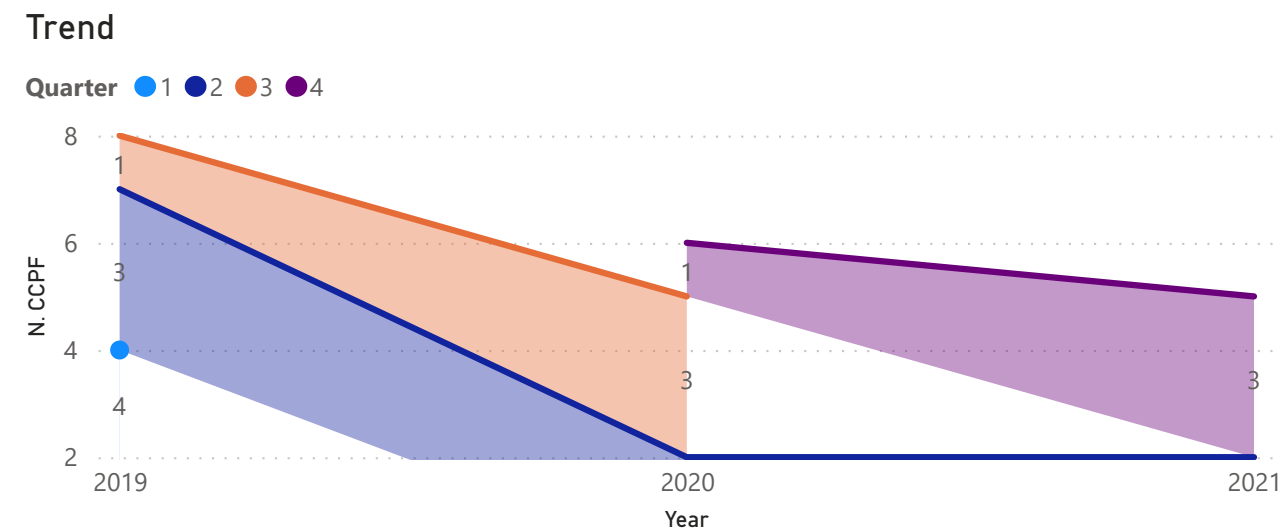
Quarter	2019	2020	2021	Total
1	19	12	13	44
2	21	10	21	52
3	7	21	17	45
4	18	20	17	55
Total	65	63	68	196



Supplementary Protection Certificates for plant products (CCPF)

Applications

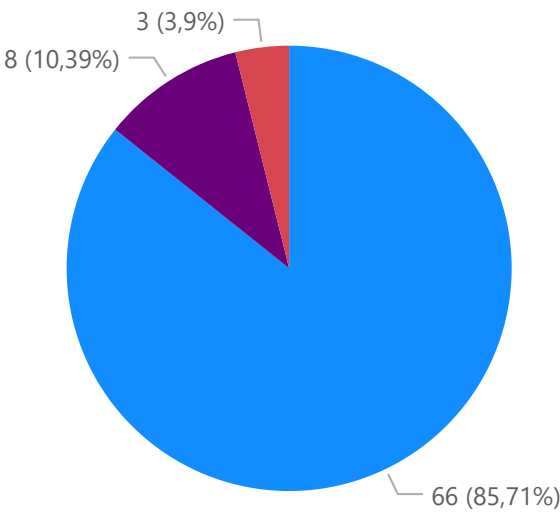
Quarter	2019	2020	2021	Total
1	4			4
2	3	2	2	7
3	1	3		4
4		1	3	4
Total	8	6	5	19



CCP - CCPF

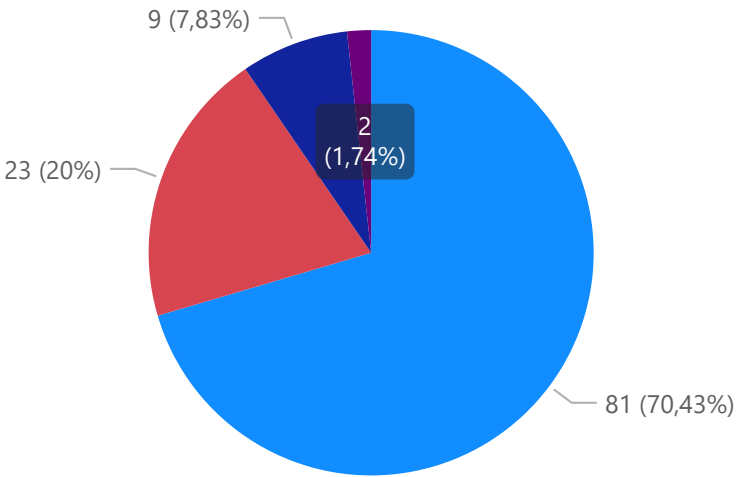
Final Decisions

2020



- Final Decisions**
- Grant
 - Withdrawals
 - Revoked

2021



- Final Decisions**
- Grant
 - Revoked
 - Refusal
 - Withdrawals

Year 2020

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
CCP	18	10	21	23	72
Grant	16	6	21	18	61
Withdrawals	1	2		5	8
Revoked	1	2			3
CCPF		2	3		5
Grant		2	3		5
Total	18	12	24	23	77

Year 2021

Decision	Trim 1	Trim 2	Trim 3	Trim 4	Total
CCP	30	33	22	25	110
Grant	14	19	21	23	77
Revoked	12	11			23
Refusal	3	2	1	2	8
Withdrawals	1	1			2
CCPF	1	3		1	5
Grant	1	2		1	4
Refusal		1			1
Total	31	36	22	26	115

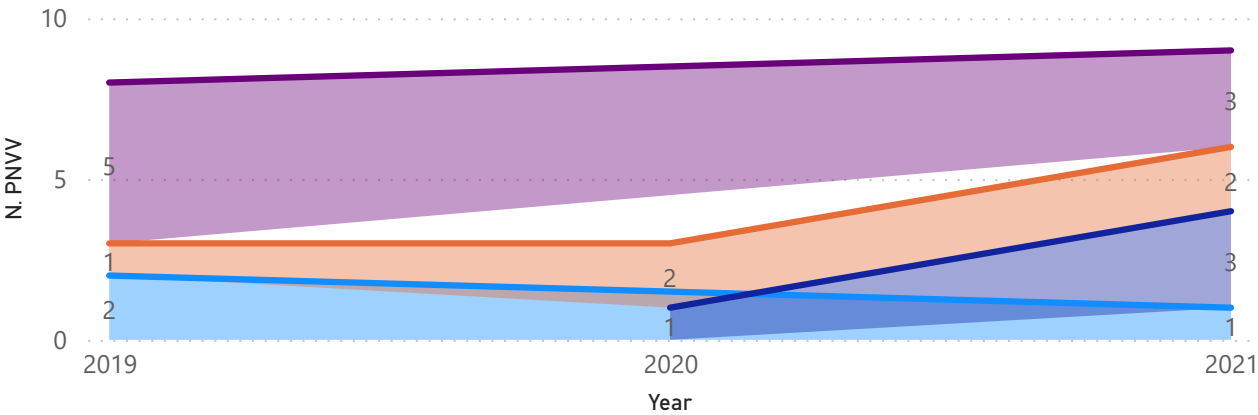
Plant Varieties (PV)

Applications

Quarter▲	2019	2020	2021	Total
1	2		1	3
2		1	3	4
3	1	2	2	5
4	5		3	8
Total	8	3	9	20

Trend

Quarter ● 1 ● 2 ● 3 ● 4



Semi-Conductors Topography(SCT)

Applications

Quarter▲	2021	Total
1	1	1
Total	1	1

Trend

Quarter ● 1

